

Tentative Rulings for July 28, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402431	RADOFF vs LOPEZ	MOTION TO QUASH DEPOSITION SUBPOENA

Tentative Ruling:

The defendant's motion to quash deposition subpoena is granted in part and denied in part. In particular:

The motion is granted as to Item #9 of the subpoena.

The motion is denied as to Item Numbers 1-7, but on the condition that the subpoena is modified as follows:

- Item Numbers 1-8 are limited to "non-content records," as authorized under 18 U.S.C. section 2702, subdivision (c).
- The periods covered by the subpoena shall be limited to the period from 2:40 A.M. to 4:00 A.M.
- The disclosure shall be subject to a limited protective order providing that the records would be available only to counsel and experts and shall only be used in the present lawsuit.
- A formal order shall be prepared, served, and submitted by counsel for Plaintiffs.

The motion is denied as to Item #8 on the same conditions as for ##1-7, except that the time period is from the date of the accident to the present.

Analysis:

Items 1 – 8: These items seek categories of "non-content" information which are reasonably particularized and within the permissible scope of discovery. Contrary to Defendant Lopez's contention, the disclosure of the SCA does not prohibit disclosure of "non-content records." (See 18 U.S.C., § 2702(c)(6) [disclosure is authorized to "any person other than a governmental entity"].) Moreover, although Defendant Lopez may have a legally protected privacy interest over such records, Plaintiffs sufficiently demonstrate that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means.

Item 8: The time period is extended for this category of documents to capture the latest password, the absence of which is preventing the forensic examination from being completed.

Item 9: This portion of the subpoena is not reasonably particularized. As a result, it may include records that are protected under the Stored Communications Act (18 U.S.C., § 2701 et seq., "SCA").

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404364	CITY OF BANNING vs THE ACME FINANCIAL GROUP LIMITED PARTNERSHIP	MOTION TO ENFORCE RECEIVERSHIP ORDER

Tentative Ruling:

The City's request for judicial notice is denied.

The City's motion to enforce the receivership order as to defendant Acme is denied.

The complaint now being at issue, the Court shall conduct a trial setting conference on August 27, 2026, at 8:30 A.M.

Analysis:

The matters of which the City asks this Court to take judicial notice are irrelevant to the Court's analysis. The request is denied on that basis.

On 9-25-25, the Court entered its Receivership Order which inter alia (1) appointed a receiver over the Nuisance Property, (2) ordered the receiver to take possession of the property from the defendants and to rehabilitate the property, (3) ordered the defendants to surrender possession of the property to the receiver, and (4) enjoined the defendants from collecting rents from the tenants or otherwise interfering with the receiver. The Acme Financial Group Limited Partnership ("Acme"), the default of which had previously been entered (Ex Q), was one of the defendants to whom the Receivership Order was directed.

On 3-5-26, Acme moved for relief from its default. On 6-3-26, the Court granted that motion, vacating the default of Acme and vacating the Receivership Order as to Acme. Less than two weeks later, the City filed a motion acknowledging the order of 6-3-26 but nevertheless seeking to enforce the terms of the Receivership Order against Acme.

The City fails to comprehend the effect of the order vacating the Receivership Order as to Acme. The Receivership Order having been vacated as to Acme, there is no longer any order to be enforced against that defendant.

The City may decide to bring a noticed motion for a preliminary injunction binding Acme. However, it is clear that the instant motion does not seek a new injunction against Acme. The notice of motion clearly describes the relief sought: to obtain "an order "[e]nforcing this Court's own September 25, 2025 Receivership Order against Defendant The Acme Financial Group Limited Partnership." (Ntc of Mtn, p. 1, ll. 7-9.) Instead of seeking a new injunction, it mistakenly attempts to enforce an injunction that no longer exists.

By repeatedly insisting that the Receivership Order must nevertheless be enforced against Acme, the City implicitly argues that Acme is bound to comply with an order that was entered against it (1) without valid service of process, and thus without personal jurisdiction, (2) without notice of the motion for the issuance of such an order, and (3) without the opportunity to be heard in opposition to that motion. The City does not cite to any authority for the proposition that a receivership order issued without due process is nevertheless enforceable.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406065	ANDERSON vs AMERICAN HONDA MOTOR COMPANY, INC.	MOTION FOR ATTORNEY'S FEES

Tentative Ruling:

The plaintiff's motion for attorney's fees is granted in the reduced sum of \$21,719.

Analysis:

The fees sought for the prosecution of the instant motion are excessive. An attorney with Liu's years of experience and familiarity with the case should have been able to draft the motion, proposed order, and reply in no more than 4 hours. Instead, Liu claims to have spent 4.8 hours in drafting the motion and to expect another 6.7 hours to draft the reply. Fees are reduced by \$3,920.